

The Indian Contract Act, 1872

Chapter-VIII Of Indemnity and Guarantee

Section 124: “Contract of indemnity” defined.

124. A contract by which one party promises to save the other from loss caused to him by the conduct of the promisor himself, or by the conduct of any other person, is called a “contract of indemnity”.

Illustration

A contracts to indemnify B against the consequences of any proceedings which C may take against B in respect of a certain sum of 200 rupees. This is a contract of indemnity.

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